BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
BENCH-V
NEW DELHI

Coram: JUSTICE (RETD) R.D. KHARE, MEMBER (JUDICIAL)

MS. SUMITA PURKASYASTHA, MEMBER (TECHNICAL)

CA (CAA)-157/230-32/(ND)/2019

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

AND

In the matter of Scheme of Amalgamation

OF

SUPER MANAGEMENT & PORTFOLIO PRIVATE LIMITED

(THE TRANSFEROR COMPANY / APPLICANT COMPANY No.1)

WITH

QUICK FIN SOLUTIONS PRIVATE LIMITED

(THE TRANSFEREE COMPANY / APPLICANT COMPANY No. 2)

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

MEMO OF PARTIES

SUPER MANAGEMENT & PORTFOLIO PRIVATE LIMITED

G-25, GROUND FLOOR,
VARDHAMAN MAYUR MARKET,
CSC MAYUR VIHAR,
PHASE-3 DELHI-110096

...TRANSFEROR COMPANY / APPLICANT COMPANY NO. 1

WITH

QUICK FIN SOLUTIONS PRIVATE LIMITED

G-25, GROUND FLOOR,
VARDHAMAN MAYUR MARKET,
CSC MAYUR VIHAR,
PHASE-3 DELHI-110096

...TRANSFEREE COMPANY / APPLICANT COMPANY NO.2

For the Applicants: MR. RAJESH AGRAWAL

O R D E R

As Per Ms. Sumita Purkayastha

Delivered on : 09 .12 .2019

1. This is an application which is filed by the applicant companies above named jointly under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of Amalgamation

(hereinafter referred to as the "SCHEME") proposed between the applicants. The said Scheme is also annexed as Annexure "A-22" to the application. The applicants above named have preferred the instant application in effect for the following purpose as evident inter alia from the reliefs sought for in the Application, namely:

a. Dispense with the requirement of convening meeting of Shareholders, Unsecured Creditors and Secured Creditors of the Transferor Company and of the Transferee Company..

b. Pass such other/further order(s) as this Hon`ble Tribunal may deem fit and proper.

c. Pass such and further order (s) as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case.

2. An affidavit in support of the above application sworn for and on behalf of the Applicant Companies by one Mr. Rajesh Kumar Manocha has been filed, being the Authorized Signatory along with the application. Counsel for the joint applicants took us through the averments made in the application as well as the typed set of documents annexed there with. It is further represented that a joint application filed by the applicants are maintainable in view of Rule 3(2) of the Companies (Compromises, Arrangements and Arrangements) Rules 2016 and it is also represented that the registered office of all the applicant companies are situated within the territorial jurisdiction of this Tribunal and the Registrar of Companies, NCT, New Delhi.

3. The applicant has furnished the details of the Shareholders, Secured Creditors and Unsecured Creditors are marked as Annexure A/6, A/7, A/8, for transferor Company and A/16, A/17, A/18, A/19 for transferee Company as on date which are as follows;

S. NO.	Name of the Company	No. of Equity Share Holders	No. of Secured Creditors	No. of Unsecured Creditors
1.	SUPER MANAGEMENT & PORTFOLIO PRIVATE LIMITED	6	NIL	4
2.	QUICK FIN SOLUTIONS PRIVATE LIMITED	4	1	3

The applicants contend that all the equity shareholders of all the Applicant Company have given their consent for the scheme and necessary affidavits have been filed and seeks dispensation from convening and conducting the meetings of the shareholders. The Applicant Companies contend that all the Unsecured Creditors have given their consent for the Scheme and necessary affidavits. The applicant pleads that there is no need to conduct meeting of the Secured Creditors as the Transferor company has 'Nil' Secured Creditors and the Transferee Company has one (1) Secured Creditor which has given their consent for the Scheme along with the necessary affidavits .

4. In relation to the territorial jurisdiction, Ld. Counsel for the applicant companies submit that since the registered office of the respective companies fall within the purview of Registrar of Companies, NCT, New

Delhi, this Tribunal has the necessary territorial jurisdiction to entertain the joint application.

5. We have perused the joint application and the connected documents / papers filed therewith including the Scheme of Arrangement contemplated between the Applicant companies.

6. Perusal of the application filed by the applicants indicate the details of the capital structure of the applicant companies which are given as follows;

S. NO.	Name of the applicant companies	Date of incorporation under the companies Act 1956	Authorized Share Capital	The issued, paid up and subscribed share capital	CIN NO.
1.	SUPER MANAGEMENT & PORTFOLIO PRIVATE LIMITED	31.01.1994	Rs. 2,00,00,000/- divided into 20,00,000 Equity Shares of Rs. 10/- each.	Rs. 1,67,80,600/- divided into 16,78,060/- Equity Shares of Rs. 10/- each.	U65100DL1994PTC057150
2.	QUICK FIN SOLUTIONS PRIVATE LIMITED	19.03.1992	Rs. 1,50,00,000/- divided into 15,00,000 Equity Shares of Rs. 10/- each	Rs. 1,25,72,640/- divided into 12,57,264/- Equity Shares of Rs. 10/- each	U65100DL1992PTC166240

7. All the applicants have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2019.

8. The Board of Directors of the Applicant companies vide meeting held on 22.02.2018/ 27.08.2019, have unanimously approved the proposed Scheme of Amalgamation as contemplated above and copies of resolutions passed thereon have been placed on record by the companies.

9. The Applicant Companies are Non- Banking Finance Companies [NBFC] and duly registered with the Reserve Bank of India. The RBI vide its letter no. 5470/CMS-VIII/05.19.349/2018/9 for transferor company and 5471/CMS-IX/05.17.008/2018-19 for the transferee company granted it's NO OBJECTION to the proposed Scheme of Merger.

10. The appointed date as specified in the Scheme is 1st April, 2019 subject to the directions of this Tribunal.

11. The Applicant companies have stated in the application that no investigation proceedings are pending against them under Sections 210 or any other applicable provisions of the Companies Act, 2013.

12. That the Applicant Companies have complied with the proviso to Section 230 (7) and Section 232 (3) by filing the certificate of the Company's Auditor in relation to compliance with the Accounting Standards under section 133 of the Companies Act, 2013.

13. Taking into consideration the application filed jointly by the Applicant Companies and the documents filed therewith, this Tribunal propose to

issue the following directions with respect to calling, convening and holding of the meetings of the Equity Shareholders, Secured and Unsecured Creditors, or dispensing with the same as well as issue of notices including by way of paper publication as follows:-

A) In relation to the Transferor Company :

(i) With respect to Equity shareholders:

Since it is represented by the Transferor Company there are 6 Equity shareholders in the Company whose consents have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditor:

Since it is represented by the Transferor Company that there is no Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferor Company that there are 04 Unsecured Creditor in the Company, whose consents have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

B) In relation to Transferee Company:

(i) With respect to Equity shareholders:

Since it is represented by the Transferee Company there are 04 Equity shareholders in the Company and all of them have given their consents by way of affidavit which are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditor:

Since it is represented by the Transferee Company that there is 01 Secured Creditor in the Company, has given their consents by way of affidavit which are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferee Company that there are 03 unsecured Creditor in the Company, whose consent has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

The application stands allowed on the aforesaid terms. Let the petition for approval of the scheme of Amalgamation be filed within a period of seven days from the date of this order.

Sd/-

SUMITA PURKAYASTHA
Member (T)

Sd/-

JUSTICE RAJESH DAYAL KHARE
Member (J)

Pronounced today under Rule 151 of the NCLT Rules 2016 as Hon'ble Member(J), Justice (Retd.) Rajesh Dayal Khare is not holding court today.

Sd/-

(PRABHAT KUMAR SHARMA)

COURT OFFICER